in the appropriate bargaining unit is designated the exclusive representative of those employees. Mich. Comp. Laws § 423.211 (1970).[18] A union so designated is under a duty of fair representation to all employees in the unit, whether or not union members. *E. g., Lowe* v. *Hotel & Restaurant Employees Local 705,* 389 Mich. 123, 145–152, 205 N. W. 2d 167, 177–180; *Wayne County Community College Federation of Teachers Local 2000* v. *Poe,* 1976 Mich. Emp. Rel. Comm'n 347, 350–353; *Local 836, AFSCME* v. *Solomon,* 1976 Mich. Emp. Rel. Comm'n 84, 89. And in carrying out all of its various responsibilities, a recognized union may seek to have an agency-shop clause included in a collective-bargaining agreement. Mich. Comp. Laws § 423.210 (1)(c) (1970). Indeed, the 1973 amendment to the Michigan law[19] was specifically designed to authorize agency shops in order that "employees in the bargaining unit . . . share fairly in the financial support of their exclusive bargaining representative . . . ." § 423.210 (2).

The governmental interests advanced by the agency-shop provision in the Michigan statute are much the same as those promoted by similar provisions in federal labor law. The confusion and conflict that could arise if rival teachers' unions, holding quite different views as to the proper class hours, class sizes, holidays, tenure provisions, and grievance procedures, each sought to obtain the employer's agreement, are no different in kind from the evils that the exclusivity rule in the Railway Labor Act was designed to avoid. See *Madison School Dist.* v. *Wisconsin Employment Relations Comm'n,* 429 U. S. 167, 178 (BRENNAN, J., concurring in judgment). The desirability of labor peace is no less important in the public sector, nor is the risk of "free riders" any smaller.

Our province is not to judge the wisdom of Michigan's

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[18] See n. 1, *supra.*

[19] See *supra,* at 214, and n. 7.